

opposition division had changed between the oral and written decision; see e.g. T 960/94, T 862/98, T 2175/16 and T 2348/19.

In T 900/02 a number of procedural irregularities had occurred after the oral proceedings before the opposition division, including a delay of over three years before despatch of the written decision (in fact, two decisions were issued, in different compositions). The board followed T 390/86 and T 862/98 and held that if for any reason, (even quite acceptable and understandable reasons such as illness or retirement), the same three members were not available, then the parties were to be offered new oral proceedings.

1.3.3 Composition of opposition division includes those who have taken part in proceedings for grant contrary to Art. 19(2) EPC

Art. 19(2), first and second sentence, EPC refers to the participation of members of the opposition division at **every stage** of the grant proceedings, not only to their involvement in the final decision (T 476/95). If only one examiner took part in the prior proceedings, that examiner may not be chairman in the subsequent opposition proceedings under Art. 19(2) EPC (T 939/91). It is established case law (T 251/88, T 939/91, T 382/92, T 476/95, T 838/02, T 825/08, T 1349/10, T 1700/10, T 234/11) that an improper composition of the opposition division is a substantial procedural violation.

In T 1788/14 the opposition division's decision had been taken in a composition that differed from the examining division only in that a new chairman had been appointed. The board regarded this to be a substantial procedural violation.

In T 382/92 the board held that in cases of a breach of Art. 19(2) EPC it follows from the lack of jurisdiction of the department of first instance that the impugned decision is void ab initio (see also J 38/97).

1.3.4 Remittal after breach of Article 19(2) EPC

Where the composition of an opposition division is in breach of Art. 19(2) EPC, this is deemed to be a substantial procedural violation that can warrant reimbursement of the appeal fee and remittal of the case (established case law, see T 251/88, T 939/91, T 382/92, T 476/95, T 838/02, T 825/08, T 1349/10, T 1700/10, T 135/12, T 285/11).

In T 838/02 the chairman of the opposition division ought to have been excluded as he had participated in the grant proceedings, yet he had been in place when the patent was revoked. The board held that it was immaterial for the purposes of Art. 19(2) EPC 1973 whether or not the opposition division had actually been aware of the circumstances justifying exclusion. If the composition of the opposition division was contrary to Art. 19(2) EPC 1973, the parties should be given the opportunity to comment before the board decided on the remittal of the case.

Although the facts in T 1349/10 were similar, the board distinguished the situation from that in T 838/02, as the patent had been maintained in the opposition proceedings, which meant that the public too was affected by the procedurally flawed decision. The board held

that violations of Art. 19(2) EPC 1973 should lead to a remittal regardless of the parties' position at least in situations where third parties were affected by the outcome of the defective first-instance proceedings.

In T 234/11 the dossier showed that two members of the opposition division had taken part in the grant proceedings. The board ruled that the wording of Art. 19(2) EPC left no room for discretion. Nor did the conclusion reached in T 838/02 apply because here the issue was the patent's maintenance in amended form and, besides, the parties to the proceedings had conflicting interests: one sought remittal to the opposition division; the others did not want that.

2. Date of decision

2.1. Entry into force of decisions

The Enlarged Board of Appeal in G 12/91 (OJ 1994, 285) distinguished between decisions taken after the closure of the debate in oral proceedings and decisions taken following written proceedings. Where oral proceedings are held, the decision may be given orally. The decision becomes effective by virtue of its being pronounced. The equivalent of that point in time in written proceedings is the moment the decision is notified. Once it has been pronounced and, in the case of written proceedings, notified, the decision enters into force and cannot be amended, even by the department that issued it. A decision may only be revoked by the department that issued it by way of an interlocutory revision under Art. 109 EPC 1973 if one of the parties has filed an admissible and well-founded appeal.

2.2. Completion of the internal decision-making process

According to G 12/91 (OJ 1994, 285) the point in time at which a decision enters into force, i.e. the moment it is pronounced or notified, is not the last moment at which parties could still submit observations. This had to be done **at an earlier point** in the proceedings to allow the decision-making department time to deliberate and then issue its decision based on the parties' submissions. Where oral proceedings are held, this moment is the closing of the debate, this point being fixed by the decision-making department – having first heard the parties' submissions – to allow itself time to consider its decision (see J 42/89; T 762/90 and T 595/90, OJ 1994, 695). In the case of decisions taken following **written** proceedings, the point in time at which the internal decision-making process was completed was the date on which the formalities section handed over the date-stamped, post-dated decision to the EPO postal service. This marks the completion of proceedings before the decision-making department, which can no longer amend its decision. This point in time should be clearly indicated in the decision.

In T 2573/11 the board decided that if it was clearly indicated in the decision on which date the formalities section handed the decision over to the EPO postal service, this date was thus the date on which written proceedings before the decision-making department were completed.

In T.798/95 the board held that a request for amendment filed after the completion of the proceedings up to grant before an examining division was to be disregarded even if the filing of the request and the completion of the proceedings occurred on the same date.

2.3. Date European patent takes effect and jurisdiction after pendency

Under Art. 97(3) EPC the decision to grant a European patent takes effect on the date on which the mention of the grant is published in the European Patent Bulletin (see also chapter IV.B.3.10. "Entry into force of a decision to grant a European patent"). A request under R.139 EPC for amendments to the description or claims can only be filed during the pendency of application or opposition proceedings. In J.42/92 the board held that there was no reason why, once no application or opposition proceedings were pending before the EPO, decisions on the question of corrections should not fall within the sole jurisdiction of the national courts or other authorities responsible for proceedings in which this question might arise (see also T.777/97).

3. Form of decisions

R.111 EPC governs the form of decisions issued by the EPO. It must first of all be established whether a "decision" – as distinct from e.g. notices and communications (see in this chapter III.K.3.1.) – has in fact been taken. Decisions are to be put in writing – even those that have been announced at oral proceedings – and accompanied by a communication pointing out the possibility of appeal (see in this chapter III.K.3.2.). R.113 EPC also stipulates that a signature is required, although this may be replaced by a seal in the case of computer-generated decisions (see in this chapter III.K.3.3.). Under R.111(2) EPC, appealable decisions must be reasoned (see in this chapter III.K.3.4.). Decisions must also be notified to the parties (see chapter III.S.).

3.1. When is there a decision?

On when a decision is open to appeal before the boards, see chapter V.A.2.2.2 "Decisions".

Determining whether there is a decision depends on the **substance** of the document content and not its **form** (J.8/81, OJ 1982, 10; J.26/87, OJ 1989, 329; J.43/92; T.222/85, OJ 1988, 128, T.713/02; J.14/07 and T.165/07). The criterion of substance has to be assessed in its procedural context (see T.713/02, OJ 2006, 267). The decisive question was whether the document at issue, when objectively interpreted in its context, could have been understood by its addressees as a final, i.e. not merely preliminary, and binding determination of substantive or procedural issues by the competent organ of the EPO (T.165/07). A decision of the EPO may be, but ought not to be, given in a document which in form appears to be merely a communication (J.8/81, OJ 1982, 10).

In T.1093/05 (OJ 2008, 430) the board expressly deviated from the view held in T.971/06 that a flawed decision was void. A flawed decision could be set aside only following an admissible and allowable appeal (as in G.12/91, OJ 1994, 285; G.4/91, OJ 1993, 707; T.371/92, OJ 1995, 324; T.1081/02; T.830/03; T.222/85).

In T.222/85 (OJ 1988, 128) the board noted that the contents of a "communication" never constituted a "decision". This distinction was important, because only a "decision" could be the subject of an appeal - see Art. 106(1) EPC 1973. In the case at issue the communication only represented a preliminary view, on an ex parte basis, and was not binding upon the department of the EPO which sent it. In contrast, the contents of a "decision" were always final and binding in relation to the department of the EPO which issued it, and could only be challenged by way of appeal.

In T.999/93 the annex to the minutes of the oral proceedings had been sent, but not the decision itself. The annex – although containing reasons – did not validly fulfil the function of a decision in writing since it did not bear any name or signature. If a decision of a particular division is to be legally valid, it must have been written on behalf of and represent the views of the members who were appointed to that division to decide the issues forming the subject of the decision, and it must bear signatures which indicate this (see T.390/86, OJ 1989, 30).

In J.14/07 the board held that the communication refusing the request for reimbursement of 50% of the examination fee constituted a decision within the meaning of Art. 106(1) EPC 1973. The mere indication of the name of the formalities officer without any signature, but which had been replaced by a seal, complied with the requirements of the then current R.70(2), first sentence EPC 1973 because the communication was produced by using a computer. The formalities officer was also competent to decide on the request for reimbursement of the fee; see R.9(2) EPC 1973 in conjunction with the notice from the Vice-President of Directorate-General 2 of the European Patent Office dated 28 April 1999 concerning the entrustment to non-examining staff of certain duties normally the responsibility of the examining or opposition divisions, OJ 1999, 504. See now Decisions of the President of the European Patent Office dated 12 December 2013 (OJ 2014, A6, OJ 2015, A104 and OJ 2020, A80) and communication of the EPO (OJ 2014, A32).

3.1.1 Cases involving two decisions

In T.830/03 the opposition division had issued a second written decision intended to supersede a first written decision already sent. The board noted that the need for legal certainty required a presumption of validity in favour of a written decision which was notified to the parties by an opposition division in accordance with the formal requirements of the EPC 1973, in particular R.68 to R.70 EPC 1973 (R.111 to 113 EPC). Once the decision was pronounced and the (first) written decision, in the case at issue, notified to the parties, the opposition division was bound by it even if it considered its decision not to "have any legal effect" (see T.371/92, OJ 1995, 324). The decision could be set aside only by the second instance on the condition that an allowable appeal was filed under Art. 106 EPC 1973 (see also T.1093/05). With the filing of the first notice of appeal, the power to deal with the issues involved in this case passed from the department of first instance to the appeal instance (devolutive effect of the appeal). All actions carried out by the opposition division after the notification of the (first) decision, and a fortiori after the filing of the first appeal, were ultra vires and thus had no legal effect.

In T.1257/08 the board, referring to T.830/03 stated that under the presumption of legal validity, the first written decision notified constitute the opposition division's only legally valid written decision. The opposition division was bound by it and could not itself set it aside. Furthermore, only the first written decision as legally valid decision was appealable.

In T.1972/13 the board held that the second decision issued by the examining division, refusing the applicant's request for refunding an additional search fee, was null and void. It held that it is not relevant whether or not a separate appeal against the second decision was filed, given that an appeal against a legally void decision could logically have no legal effect.

3.1.2 Inconsistency between oral and written decisions

In T.425/97 the sole ground of appeal was the inconsistency existing between the written decision and the form of the patent held to be patentable by the opposition division at the oral proceedings. The board observed that R.68(1) EPC 1973 (now R.111(1) EPC) laid down that the decision announced at the oral proceedings and the written one had to be the same and so any discrepancy between the two was a procedural flaw (see also T.318/01, T.1590/06 and T.1698/06).

In T.850/95 (OJ 1997, 152) the board held that in examination proceedings, where the decision to grant the patent referred to the documents approved by the applicant under R.51(4) EPC 1973 (now R.71(3) EPC) these documents became an integral part of that decision.

In T.740/00 the board found that in opposition proceedings the documents referred to in the decision to maintain the patent in amended form also formed an integral part of that decision. Differences between the decision pronounced at the oral proceedings and the written decision were not mistakes which could be corrected under R.89 EPC 1973, but amounted to a substantial procedural violation requiring immediate remittal of the case to the department of first instance.

3.2. Pointing out the right to appeal in accordance with Rule 111(2) EPC

Under R.111(2) EPC appealable EPO decisions must be accompanied by a communication pointing out the possibility of appeal and drawing the attention of the parties to Art.106 to 108 EPC, which specify how to file appeals.

However, the parties cannot invoke any omission to communicate this possibility; see R.111(2), second sentence, EPC. According to T.42/84 (OJ 1988, 251), the EPO's failure to enclose the text of Art.106 to 108 EPC with the decision neither invalidated the decision nor amounted to a substantial procedural violation. See also T.231/99 and T.493/08.

3.3. Signatures on a decision under Rule 113 EPC

Under R.113 EPC EPO decisions must be signed by, and state the name of, the employee responsible. Under R.113(2) EPC a seal may replace the signature when a decision is